

DATA SHARING AND PROCESSING AGREEMENT

AI4Startups – African Innovation Ecosystem

THIS AGREEMENT (this "Agreement") is entered into on _____ day of _____, 20 by and between:

[DISCLOSING PARTY NAME], a [entity type] organised under the laws of [jurisdiction], with its principal place of business at [address] ("Data Provider"); and

[RECEIVING PARTY NAME], a [entity type] organised under the laws of [jurisdiction], with its principal place of business at [address] ("Data Recipient").

I. RECITALS

- 1.1. WHEREAS, Data Provider possesses certain datasets, information, and intellectual property that may be valuable for artificial intelligence development, innovation, and research purposes;
- 1.2. WHEREAS, Data Recipient desires to access and process such data for legitimate business purposes including AI model development, research, and innovation activities;
- 1.3. WHEREAS, the parties wish to establish a framework for responsible data sharing that respects data subject rights, promotes African digital sovereignty, and complies with applicable data protection laws;
- 1.4. WHEREAS, this Agreement is designed to align with the African Union Data Policy Framework, continental data governance principles, and applicable national data protection laws;

1.5. NOW, THEREFORE, in consideration of the mutual covenants contained herein, the parties agree as follows:

2. DEFINITIONS AND INTERPRETATION

2.1. Key Definitions

2.1.1. For purposes of this Agreement, the following terms shall have the meanings set forth below:

2.1.1.1. "**African Union Framework**" means the AU Data Policy Framework, the African Union Convention on Cyber Security and Personal Data Protection (Malabo Convention), and related continental data governance instruments.

2.1.1.2. "**Applicable Data Protection Law**" means all applicable data protection, privacy, and cybersecurity laws, including without limitation: (i) the data protection laws of the countries where Personal Data subjects are located; (ii) Ghana Data Protection Act, 2012 (Act 843); (iii) the EU General Data Protection Regulation (EU) 2016/679 ("GDPR") where applicable; and (iv) other relevant national data protection laws in the Territory.

2.1.1.3. "**Confidential Information**" means any and all non-public, proprietary information disclosed by one party to the other, including but not limited to: datasets, algorithms, source code, technical specifications, business plans, customer information, financial data, and any derivatives or insights generated therefrom.

2.1.1.4. "**Data Breach**" means a breach of security leading to the accidental or unlawful destruction, loss, alteration, unauthorised disclosure of, or access to Personal Data transmitted, stored or otherwise processed.

2.1.1.5. "**Data Controller**" has the meaning given in Applicable Data Protection Law and generally means the entity that determines the purposes and means of processing Personal Data.

2.1.1.6. "**Data Processor**" has the meaning given in Applicable Data Protection Law and generally means an entity that processes Personal Data on behalf of a Data Controller.

2.1.1.7. "**Data Subject**" means an identified or identifiable natural person whose Personal Data is processed under this Agreement.

2.1.1.8. "**Personal Data**" means any information relating to an identified or identifiable natural person as defined under Applicable Data Protection Law.

2.1.1.9. "**Processing**" has the meaning given in Applicable Data Protection Law and includes any operation performed on Personal Data.

2.1.1.10. "**Shared Data**" means all data, information, datasets, and related materials provided by Data Provider to Data Recipient under this Agreement, including Personal Data and non-personal data.

2.1.1.11. "**Special Category Data**" means Personal Data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, trade union membership, genetic data, biometric data, health data, or data concerning sex life or sexual orientation.

2.1.1.12. "**Territory**" means Ghana, Senegal, Côte d'Ivoire, Kenya, Rwanda, South Africa, Tanzania, and Botswana, and such other African countries as may be specified in Schedule 1.

3. DATA SHARING FRAMEWORK

3.1. Purpose and Scope

3.1.1. The Data Provider agrees to share Shared Data with Data Recipient solely for the purposes specified in Schedule 1 ("Permitted Purposes"). Data Recipient acknowledges that access to Shared Data is granted solely to enable innovation, research, and development activities that benefit the African digital ecosystem.

3.2. African Union Principles Compliance

3.2.1. Both parties commit to processing Shared Data in accordance with African Union Data Policy Framework principles, including:

3.2.1.1. Respect for human rights and fundamental freedoms.

3.2.1.2. Data sovereignty and African digital autonomy.

3.2.1.3.Support for regional integration and continental development.

3.2.1.4.Promotion of innovation while ensuring data protection.

3.2.1.5.Good governance, transparency, and accountability.

3.3. Data Categories and Processing Details

3.3.1.The specific categories of Shared Data, processing activities, retention periods, and security requirements are detailed in Schedule 1 attached hereto and incorporated by reference.

4. ROLES AND RESPONSIBILITIES

4.1. Data Controller and Processor Relationship

4.1.1.Unless otherwise specified in Schedule 1:

4.1.1.1.**Data Provider** acts as Data Controller for all Personal Data included in Shared Data.

4.1.1.2.**Data Recipient** acts as Data Processor when processing Personal Data on behalf of Data Provider.

4.1.1.3.Where Data Recipient processes Personal Data for its own purposes, it acts as independent Data Controller

4.2. Data Provider Warranties and Obligations

4.2.1.Data Provider represents, warrants, and undertakes that:

4.2.1.1.It has lawful authority to share all Shared Data under Applicable Data Protection Law;

4.2.1.2.All necessary consents, notices, and legal bases have been obtained for sharing Personal Data;

4.2.1.3.Shared Data does not violate any third-party rights or applicable laws;

4.2.1.4.It has implemented appropriate technical and organisational measures to protect Shared Data;

4.2.1.5.It will promptly notify Data Recipient of any changes affecting the lawfulness of data sharing.

4.3. Data Recipient Obligations

4.3.1.Data Recipient undertakes to:

4.3.1.1.Process Shared Data solely for Permitted Purposes;

4.3.1.2.Implement and maintain security measures as specified in Article 5;

4.3.1.3.Comply with all Applicable Data Protection Laws;

4.3.1.4.Provide assistance to Data Provider in responding to Data Subject requests;

4.3.1.5.Notify Data Provider immediately of any Data Breach or unauthorised access;

4.3.1.6.Return or delete Shared Data upon termination or as specified in Article 9.

5. SECURITY AND TECHNICAL MEASURES

5.1. Mandatory Security Controls

5.1.1.Data Recipient shall implement and maintain the following minimum security measures:

5.1.1.1.Technical Measures:

5.1.1.1.1.Encryption of Personal Data at rest using AES-256 or equivalent standard

5.1.1.1.2.Encryption of Personal Data in transit using TLS 1.3 or equivalent

5.1.1.1.3.Multi-factor authentication for all privileged access

5.1.1.1.4.Role-based access control with least privilege principles

5.1.1.1.5.Comprehensive audit logging with minimum 12-month retention

5.1.1.1.6.Regular automated backups with encryption and access controls

5.1.1.2.Organisational Measures:

5.1.1.2.1.Designated data protection officer or responsible person

5.1.1.2.2.Regular security awareness training for all personnel

5.1.1.2.3. Incident response procedures and breach notification protocols

5.1.1.2.4. Annual third-party security assessments or certifications

5.1.1.2.5. Data handling procedures and staff confidentiality agreements

5.1.1.2.6. Secure disposal procedures for all storage media

5.2. African Infrastructure Considerations

5.2.1. Where technically feasible and commercially reasonable, Data Recipient shall:

5.2.1.1.1. Prioritise African-based cloud and infrastructure providers

5.2.1.1.2. Implement data localisation preferences consistent with African Union data sovereignty principles

5.2.1.1.3. Support local technical capacity building through procurement and partnership decisions

5.3. Additional Security for Special Category Data

5.3.1. For Special Category Data, Data Recipient shall implement additional measures including:

5.3.1.1. Separate encrypted storage with enhanced access controls

5.3.1.2. Additional approval processes for access and processing

5.3.1.3. Enhanced monitoring and audit procedures

5.3.1.4. Specific staff training on sensitive data handling

6. CROSS-BORDER DATA TRANSFERS

6.1. Transfer Restrictions

6.1.1. Data Recipient shall not transfer Personal Data outside the Territory without Data Provider's prior written consent and implementation of appropriate safeguards.

6.2. Permitted Transfer Mechanisms

6.2.1. Where transfer is authorised, Data Recipient shall ensure one of the following safeguards:

6.2.1.1. For GDPR-Protected Data:

6.2.1.1.1. European Commission adequacy decision

6.2.1.1.2. Standard Contractual Clauses approved by European Commission

6.2.1.1.3. Binding Corporate Rules approved by competent supervisory authority

6.2.1.1.4. Certification mechanisms or codes of conduct

6.2.1.1.5. Derogations under GDPR Article 49 (where applicable)

6.2.1.2. For African Personal Data:

6.2.1.2.1. Adequacy assessment under applicable national law

6.2.1.2.2. Contractual or other safeguards approved by relevant data protection authority

6.2.1.2.3. Reciprocal data protection agreements between African countries

6.2.1.2.4. African Union mutual recognition mechanisms where available

6.3. Transfer Impact Assessment

6.3.1. Prior to any cross-border transfer, Data Recipient shall conduct and document a transfer impact assessment evaluating:

6.3.1.1. Legal framework in destination country

6.3.1.2. Adequacy of protection for data subjects' rights

6.3.1.3. Additional safeguards required

6.3.1.4. Ongoing monitoring requirements

7. DATA SUBJECT RIGHTS AND REGULATORY COOPERATION

7.1. Data Subject Rights Support

7.1.1. Data Recipient shall assist Data Provider in responding to Data Subject requests including:

7.1.1.1. Access to Personal Data

7.1.1.2. Rectification of inaccurate data

7.1.1.3. Erasure ("right to be forgotten")

7.1.1.4. Restriction of processing

7.1.1.5. Data portability

7.1.1.6. Objection to processing

7.1.2. **Timeline:** Data Recipient shall provide requested information and assistance within **Ten (10) business days** of Data Provider's request, or such shorter period as required for Data Provider to meet its legal obligations.

7.2. Regulatory Authority Cooperation

7.2.1. Both parties shall cooperate fully with inquiries, investigations, and enforcement actions by:

7.2.1.1. Data protection authorities in the Territory.

7.2.1.2. African Union institutions and mechanisms.

7.2.1.3. Other competent regulatory bodies.

7.3. Transparency and Accountability

7.3.1. Data Recipient shall maintain comprehensive records of processing activities and make available to Data Provider upon request:

7.3.1.1. Processing logs and audit trails.

7.3.1.2.Security incident reports.

7.3.1.3.Data protection impact assessments.

7.3.1.4.Compliance monitoring reports.

8. BREACH NOTIFICATION AND INCIDENT RESPONSE

8.1. Immediate Notification

8.1.1.Data Recipient shall notify Data Provider within 24 hours of becoming aware of any:

8.1.1.1.Data Breach affecting Personal Data.

8.1.1.2.Unauthorised access to or disclosure of Shared Data.

8.1.1.3.Security incidents that may compromise data integrity or availability.

8.1.1.4.Regulatory inquiries or investigations related to Shared Data.

8.2. Notification Content

8.2.1.Each notification shall include at minimum:

8.2.1.1.Description of the incident and affected data categories.

8.2.1.2.Number of Data Subjects and data records affected.

8.2.1.3.Likely consequences and potential harm.

8.2.1.4.Measures taken or proposed to address the breach.

8.2.1.5.Contact information for follow-up.

8.3. Cooperation and Remediation

8.3.1. Following any incident, Data Recipient shall:

8.3.1.1. Cooperate fully with Data Provider's incident response.

8.3.1.2. Provide regular updates on investigation and remediation.

8.3.1.3. Assist with regulatory notifications and Data Subject communications.

8.3.1.4. Implement additional security measures to prevent recurrence.

8.3.1.5. Bear costs of forensic investigation and remediation where breach resulted from Data Recipient's fault.

9. DATA RETENTION AND RETURN

9.1. Retention Limitations

9.1.1. Data Recipient shall retain Shared Data only for the period necessary to fulfil Permitted Purposes as specified in Schedule 1, and in any event no longer than required by Applicable Data Protection Law.

9.2. Secure Return or Destruction

9.2.1. Upon the earlier of;

9.2.1.1. completion of Permitted Purposes,

9.2.1.2. expiration of retention period, or

9.2.1.3. Data Provider's written request,

9.2.2.Data Recipient shall:

9.2.2.1.Return all Shared Data in a structured, commonly used format; OR

9.2.2.2.Securely destroy all Shared Data using NIST 800-88 standards or equivalent.

9.2.2.3.Provide written certification of return or destruction by an authorised officer.

9.2.2.4.Delete all backup copies within ninety (90) days unless legally required to retain.

9.3. Retention for Compliance

9.3.1.Data Recipient may retain minimal data necessary to evidence compliance with this Agreement, provided such retention:

9.3.1.1.Is limited to access logs, audit trails, and compliance records.

9.3.1.2.Does not include Personal Data content.

9.3.1.3.Is subject to same security and confidentiality obligations.

9.3.1.4.Is deleted when no longer required for compliance purposes.

10. SUB-PROCESSING AND THIRD PARTIES

10.1. Sub-Processor Authorisation

10.1.1.Data Recipient shall not engage sub-processors to process Personal Data without Data Provider's prior written authorisation.

10.1.2.Data Recipient shall maintain a current list of authorised sub-processors available to Data Provider upon request.

10.2. Sub-Processor Requirements

10.2.1.Any authorised sub-processor must:

10.2.1.1.Enter into written agreement imposing data protection obligations equivalent to this Agreement.

10.2.1.2.Implement appropriate technical and organisational security measures.

10.2.1.3.Submit to audits and assessments as reasonably requested.

10.2.1.4.Comply with applicable cross-border transfer requirements.

10.3. Liability for Sub-Processors

10.3.1.Data Recipient remains fully liable to Data Provider for any acts or omissions of sub-processors in relation to their processing of Personal Data.

II. INTELLECTUAL PROPERTY AND DERIVATIVES

II.1. Data Provider IP Rights

11.1.1. Data Provider retains all intellectual property rights in Shared Data. No license or rights are granted to Data Recipient except as expressly specified in this Agreement.

II.2. Derivative Works and Insights

11.2.1. **AI Models and Algorithms:** Data Recipient owns AI models, algorithms, and analytical tools developed using Shared Data, provided such models cannot be used to reconstruct or reverse-engineer Personal Data.

11.2.2. **Aggregated Insights:** Data Recipient may retain and use aggregated, anonymised insights that cannot be linked to specific Data Subjects, provided such use complies with Applicable Data Protection Law.

11.2.3. **Research Publications:** Data Recipient may publish research findings based on Shared Data, subject to Data Provider approval and appropriate anonymisation.

II.3. African Innovation Sharing

11.3.1. In furtherance of African Union digital development goals, Data Recipient commits to:

11.3.1.1. Share anonymised research findings with African academic institutions.

11.3.1.2.Prioritise African partners for technology transfer and capacity building.

11.3.1.3.Support open-source initiatives that benefit the African tech ecosystem.

12. COMPLIANCE MONITORING AND AUDIT

12.1. Audit Rights

12.1.1.Data Provider (or independent third-party auditor under confidentiality agreement) may audit Data Recipient's compliance with this Agreement upon 30 days' written notice, including:

12.1.1.1.On-site inspection of facilities and systems.

12.1.1.2.Review of policies, procedures, and documentation.

12.1.1.3.Technical assessment of security controls.

12.1.1.4.Interviews with key personnel.

12.1.2.**Frequency:** Routine audits may occur annually; additional audits may occur following security incidents or regulatory changes.

12.2. Compliance Certifications

12.2.1.Data Recipient may satisfy audit requirements by providing current certifications including:

12.2.1.1.ISO 27001 (Information Security Management).

12.2.1.2.SOC 2 Type II (Security, Availability, Confidentiality).

12.2.1.3.Relevant national or regional data protection certifications.

12.2.1.4.Industry-specific compliance certifications.

12.3. Remediation Requirements

12.3.1.Data Recipient shall promptly remediate any compliance deficiencies identified through audits and provide evidence of remediation within agreed timeframes.

13. LIABILITY AND INDEMNIFICATION

13.1. Mutual Indemnification

13.1.1.Each party shall indemnify, defend, and hold harmless the other party from and against all losses, damages, liabilities, costs, and expenses (including reasonable attorneys' fees) arising from:

13.1.1.1.Breach of its obligations under this Agreement.

13.1.1.2.Violation of Applicable Data Protection Law in connection with its processing of Shared Data.

13.1.1.3.Negligent or wilful misconduct in performance of this Agreement.

13.2. Regulatory Fines and Penalties

13.2.1.**Data Recipient Responsibility:** Data Recipient shall bear responsibility for regulatory fines and penalties resulting from its

non-compliance with this Agreement or Applicable Data Protection Law.

13.2.2.Data Provider Responsibility: Data Provider shall bear responsibility for fines related to unlawful sharing or inadequate lawful basis for original data collection.

13.3. Limitation of Liability

13.3.1.NOTWITHSTANDING ANY OTHER PROVISION, NEITHER PARTY SHALL BE LIABLE FOR INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, EXCEPT:

13.3.1.1.Breaches of confidentiality or data protection obligations

13.3.1.2.Wilful misconduct or gross negligence

13.3.1.3.Violations of intellectual property rights

13.3.1.4.Indemnification obligations under this Article

14. TERM AND TERMINATION

14.1. Term

14.1.1.This Agreement shall commence on the date first written above and continue for the period specified in Schedule 1, unless earlier terminated in accordance with this Article.

14.2. Termination Rights

14.2.1.Either party may terminate this Agreement:

14.2.1.1.Upon 30 days' written notice for convenience.

14.2.1.2.Immediately upon material breach that remains uncured for ten (10) days after written notice.

14.2.1.3.Immediately if the other party becomes subject to insolvency proceedings.

14.2.1.4.Immediately upon regulatory order prohibiting the data sharing.

14.3.Effect of Termination

14.3.1.Upon termination:

14.3.1.1.All rights to access and process Shared Data immediately cease.

14.3.1.2.Data return or destruction obligations under Article 9 become effective.

14.3.1.3.Confidentiality and data protection obligations survive indefinitely.

14.3.1.4.Intellectual property rights remain unaffected

15. GENERAL PROVISIONS

15.1. Governing Law and Jurisdiction

15.1.1.**Primary Jurisdiction:** This Agreement shall be governed by the laws of [specify primary jurisdiction from Territory], without regard to conflicts of law principles.

15.1.2.Regulatory Compliance: Each party acknowledges that it may be subject to additional legal requirements in other jurisdictions within the Territory and agrees to comply with all Applicable Data Protection Law regardless of the governing law clause.

15.2.Dispute Resolution

15.2.1.Negotiation: The parties shall attempt to resolve disputes through good faith negotiation for thirty (30) days.

15.2.2.Arbitration: Unresolved disputes shall be settled by arbitration under the rules of [specify: OHADA, KIAC, LCIA Africa, or other appropriate institution], with proceedings conducted in English/ French and seated in [specify neutral location within Territory].

15.2.3.Regulatory Matters: Nothing herein shall limit either party's right to seek regulatory assistance or file complaints with data protection authorities.

15.3.Assignment and Change of Control

15.3.1.Neither party may assign this Agreement without the other party's prior written consent, except to affiliates or in connection with a merger, acquisition, or sale of all or substantially all assets, provided the assignee agrees to be bound by this Agreement.

15.4. Amendments and Modifications

15.4.1. This Agreement may only be modified by written instrument signed by both parties, provided that Data Provider may unilaterally modify data processing instructions to ensure compliance with Applicable Data Protection Law.

15.5. Severability

15.5.1. If any provision is deemed invalid or unenforceable, it shall be modified to the minimum extent necessary to make it enforceable, and the remainder of the Agreement shall remain in full force and effect.

15.6. Force Majeure

15.6.1. Neither party shall be liable for delays or failures in performance due to causes beyond its reasonable control, including natural disasters, war, terrorism, or regulatory actions, provided such party uses reasonable efforts to mitigate the effects and resume performance.

15.7. Notices

15.7.1. All notices shall be in writing and delivered to the addresses specified in the preamble by:

15.7.1.1. Personal delivery (effective upon delivery)

15.7.1.2. Registered mail (effective 7 days after mailing)

15.7.1.3.Email with read receipt (effective upon confirmed receipt)

15.7.1.4.Recognised courier service (effective upon delivery)

15.8.Entire Agreement

15.8.1.This Agreement, including all Schedules attached hereto, constitutes the entire agreement between the parties and supersedes all prior negotiations, representations, and agreements relating to the subject matter hereof.

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IN WITNESS WHEREOF, the parties have executed this Agreement as of the date first written above.

DATA PROVIDER:

By: _____

Name: _____

Title: _____

Date: _____

DATA RECIPIENT:

By: _____

Name: _____

Title: _____

Date: _____

SCHEDULE 1: DATA PROCESSING DETAILS

1. Permitted Purposes

1.1. [Specify detailed purposes for data processing, e.g.:

1.1.1. AI model training and development

1.1.2. Market research and analytics

1.1.3. Product development and testing

1.1.4. Academic research and publication]

2. Data Categories

2.1. [Specify types of data being shared, e.g.:

2.1.1. Customer transaction data

2.1.2. Agricultural production data

2.1.3. User behaviour analytics

2.1.4. Financial performance metrics]

3. Data Subject Categories

3.1. [Specify categories of individuals whose data may be included, e.g.:

3.1.1. Customers and users

3.1.2. Farmers and agricultural producers

3.1.3. Employees and contractors

3.1.4. Website visitors]

4. Processing Activities

4.1. [Describe specific processing activities, e.g.:

4.1.1.Statistical analysis and modelling

4.1.2.Machine learning algorithm training

4.1.3.Data visualisation and reporting

4.1.4.Predictive analytics development]

5. Retention Period

5.1. [Specify retention requirements, e.g.:

5.1.1.Processing period: [X] months/years

5.1.2.Legal retention requirements: [specify]

5.1.3.Deletion deadline: [specific date or trigger event]]

6. Technical and Organisational Measures

6.1. [Specify additional security requirements beyond Article 4 minimums, e.g.:

6.1.1.Specific encryption requirements

6.1.2.Access control specifications

6.1.3.Monitoring and audit requirements

6.1.4.Staff training and certification requirements]

7. International Transfers

7.1. [Specify any authorised international transfers, e.g.:

7.2. Authorised destination countries: [list]

7.3. Transfer mechanisms: [SCCs, adequacy decisions, etc.]

7.4. Additional safeguards: [specify]]

8. Sub-Processors

8.1. [List any pre-authorised sub-processors, e.g.:

8.1.1. Cloud service providers

8.1.2. Analytics platforms

8.1.3. Technical support vendors]

SCHEDULE 2: JURISDICTION-SPECIFIC REQUIREMENTS

1. Ghana-Specific Requirements

- 1.1. Compliance with Data Protection Commission registration requirements
- 1.2. Adherence to cross-border transfer restrictions under Section 29
- 1.3. Breach notification to DPC within 72 hours where required

2. Kenya-Specific Requirements

- 2.1. Registration with Office of the Data Protection Commissioner
- 2.2. Compliance with data transfer requirements under Section 25
- 2.3. Local data protection officer appointment if required

3. South Africa-Specific Requirements

- 3.1. Registration with Information Regulator where required
- 3.2. Compliance with POPIA cross-border transfer provisions
- 3.3. Special measures for Special Personal Information

4. Nigeria-Specific Requirements (if applicable)

- 4.1. NITDA registration and compliance framework
- 4.2. Consent management under NDPR requirements

4.3. Local representation requirements

5. Other Jurisdictions

5.1. [Add specific requirements for other countries in Territory as applicable]



Drawn by:



CAGE PATRICK
& COMPANY ADVOCATES

5th Floor, Block D, Merchant Square, Riverside Drive, Westlands.

Post Office Box 38624 – 00100, GPO Nairobi, Kenya.

+254 (0) 202 000 015 | +254 (0) 719 222 225 | +254 (0) 754 222 225

info@cagepatrick.com | www.cagepatrick.com